

***HEARING ON MOTION IN RE: DISCHARGE WRIT OF MANDATE**

FILED BY: MARATHON PETROLEUM CORPORATION

TENTATIVE RULING:

Respondent Contra Costa County and Real-Party-In-Interest Marathon Petroleum's motion to discharge the writ of mandate is **granted**. Petitioners filed this case challenging an EIR issued by the County on May 3, 2022, arguing that it violated CEQA. On August 23, 2023, the Court issued a writ ordering the County to set aside the Project approval as to the odor mitigation section only and to reconsider the odor mitigation plan.

The County filed this motion to discharge the writ. Petitioners have not opposed this motion. The County provided a supplemental record showing that it set aside approval as to the odor mitigation and section. The County also issued a draft revised EIR including a detailed Odor Mitigation and Control Plan, which was subsequently approved the County. The Court has reviewed the new Odor Mitigation and Control Plan and finds that it complies with the writ of mandate. Therefore, the Court finds that the County has complied with this Court's writ and the writ is discharged.

21. 9:00 AM CASE NUMBER: N26-0383

CASE NAME: CLAIM OF:NORAH GLASSMOYER

***HEARING ON MINOR'S COMPROMISE**

FILED BY: GLASSMOYER, ELYCE

TENTATIVE RULING:

The proposed minor's compromise is **approved**.

22. 9:00 AM CASE NUMBER: N26-0467

CASE NAME: PETITION OF:J.G. WENTWORTH ORIGINATIONS, LLC

HEARING ON PETITION IN RE: VERIFIED PETITION FOR APPROVAL FOR TRANSFER OF PAYMENT RIGHTS

FILED BY:

TENTATIVE RULING:

The proposed transfer is **approved**.

23. 9:00 AM CASE NUMBER: N26-0488

CASE NAME: PETITION OF:J.G. WENTWORTH ORIGINATIONS, LLC

HEARING ON PETITION IN RE: VERIFIED PETITION FOR APPROVAL FOR TRANSFER OF PAYMENT RIGHTS

FILED BY: J.G. WENTWORTH ORIGINATIONS, LLC

TENTATIVE RULING:

The proposed transfer is **approved**.

24. 9:01 AM CASE NUMBER: N23-0409

CASE NAME: ALEXANDRA PADILLA VS. BRIAN DEMAINE

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S ANSWERS AT DEPOSITION AND FOR SANCTIONS**

FILED BY: HOWARD ORTHOPEDICS, INC., A CALIFORNIA CORPORATION

TENTATIVE RULING:

The plaintiff in this case, who is pro per, has a long and aggravated history of failures to provide proper discovery. This motion relates to her entirely unjustified refusals to answer a number of questions at her deposition. The motion is not opposed, and it is **granted in full**. Plaintiff is ordered to answer each of the questions that is involved in this motion, plus any reasonable follow-on questions on the same topics. She is warned that she has previously come close to incurring terminating sanctions for refusal to provide discovery, and any noncompliance with today's order is likely to result in dismissal of her case.

The Court further awards sanctions of \$9,937.50 on this motion, payable by plaintiff to defendant's counsel within 30 days hereof. These sanctions are cumulative with sanctions previously assessed in this case.